

19STCV05642 19STCV05642

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-23

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Case Number: 19STCV05642 Hearing Date: June 23, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department

407

HEARING DATE: June 23, 2026 TRIAL DATE: Vacated

CASE: Garcia Legal v. Esperanza Molina as Trustee of the Esperanza

Molina Trust, et al.

CASE NO.: 19STCV05642

MOTION

TO TAX COSTS

MOVING PARTY: Plaintiff/Cross-Complainant

Garcia Legal

RESPONDING PARTY: Cross-Defendant

Monica R. Molina

I. INTRODUCTION

On February 19, 2019, Plaintiff, Garcia Legal, filed a Judicial

Council Form Complaint against Defendants, Esperanza Molina, individually and

as Trustee of the Esperanza Molina Trust ("Esperanza"), for (1) Breach of

Contract; (2) Common Counts; and (3) Declaratory Relief.

On April 6,

2020, Plaintiff dismissed the Third Cause of Action for Declaratory Relief. Defense counsel argued, and Plaintiff agreed,

that Plaintiff's claim in the Forest Lawn Action was not yet ripe. At the time, the Forest Lawn Action was

pending.

On May 26,

2020, Esperanza filed a Cross-Complaint against Plaintiff for Breach of

Contract and Common Counts.

On August

24, 2020, Plaintiff filed a Cross-Complaint against Monica R. Molina ("Monica")

for Indemnity.

On December 19, 2023, Plaintiff filed a motion for leave to file

the proposed First Amended Complaint (FAC).

The court granted the motion on February 28, 2024.

On June 6, 2025, Plaintiff filed a Notice of

Settlement.

On June 9, 2025, Plaintiff dismissed the FAC. On the same day, Esperanza dismissed her

Cross-Complaint.

On July 21, 2025, Plaintiff filed a motion to enter a judgment of dismissal of Plaintiff's Cross-Complaint without prejudice.

On December 8, 2025, the court granted the motion to dismiss.

On February 9, 2026, the court entered judgment of dismissal of Monica's Cross-Complaint.

On February 23, 2026, Monica filed a Memorandum of Costs.

On March 10, 2026, Plaintiff filed a motion to tax costs.

On June 10, 2026, Monica filed an opposition.

Plaintiff did not file a reply.

II. LEGAL

STANDARD

The memorandum of cost is a verified statement by the party, attorney, or agent that the costs are correct and were necessarily incurred in the case.¿ (Cal. R. Ct., rule 3.1700(a)(1).)¿ "If the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant, and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]."¿ (Oak Grove School Dist. v.

City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698.)² “[I]f the correctness of the memorandum is challenged either in whole or in part by the affidavit or other evidence of the contesting party, the burden is then on the party claiming the costs and disbursements to show that the items charged were for matters necessarily relevant and material to the issues involved in the action.”³ (Id. at p. 699.)⁴⁵

A party challenging the amounts claimed may file a motion to tax costs, which must be served and filed 15 days after service of the cost memorandum.⁶ If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6, subdivision (a)(4).⁷ (Cal. R. Ct., rule 3.1700(b)(1).)⁸ “Unless objection is made to the entire cost memorandum, the motion ... must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.”⁹ (Cal. R. Ct., rule 3.1700(b)(2).)¹⁰¹¹

III. DISCUSSION

Monica

seeks to recover total costs of \$1,485.41, consisting of filing and motion fees

of \$446.96, court reporter fees as established by stated of \$425.00, fees for

electronic filing or service of \$567.45 and other costs of \$46.00. Plaintiff moves to tax these costs on the

ground they are not allowable by law, supported by adequate evidence, or

otherwise permitted to be recovered.

After

reviewing the filings in connection to this issue, the court finds the costs

are recoverable under the law. Further,

Monica substantiates that the costs were incurred. (Molina Decl., Exs. 4, 5, 7, 8.) To the extent the costs are not expressly

authorized, the court exercises its discretion to award the costs. (Code Civ. Proc., § 1033.5(c)(4).)

IV. CONCLUSION

The motion

is DENIED.

Molina is ordered to give notice, unless waived.

Dated: June 23, 2026

Brock T. Hammond

Judge of the Superior Court